

October 13, 2022

Via Email: secretary@fmc.gov

Mr. William Cody, Secretary
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573

Re: *Docket No. 22-24, Definition of Unreasonable Refusal to Deal or Negotiate with Respect to Vessel Space Accommodations Provided by An Ocean Common Carrier; NITL Support for the Request for Extension of Time*

Dear Secretary Cody:

The National Industrial Transportation League (“NITL” or the “League”) submits this letter in support of the September 27, 2022 request by the Agriculture Transportation Coalition for an extension of the public comment period in this docket until November 7, 2022.

The League commends the Federal Maritime Commission (“FMC” or the “Commission”) for its actions to expeditiously implement the requirements of the recently adopted Ocean Shipping Reform Act of 2022 (“OSRA 2022”), including its issuance of this significant rulemaking on September 21, 2022. This proceeding involves critical issues for NITL members and other stakeholders in the shipping industry as to how ocean carrier unreasonable refusals to deal or negotiate should be defined in relation to vessel space allocations. The League believes that the important issues raised in this rulemaking warrant additional time to ensure that NITL can collect adequate information and feedback from its members on the issues raised in the FMC’s notice.

The League believes that extending the public comment period until November 7, 2022 will allow NITL and other stakeholders the time needed to prepare thoughtful comments without affecting the FMC’s statutory mandates under OSRA 2022. Thus, the League supports and respectfully urges the FMC to grant the request by the Agriculture Transportation Coalition to extend the public comment period until November 7, 2022.

Thank you for your consideration of this request.

Sincerely yours,



E. Nancy O’Liddy
NITL Executive Director